

# Data Protection & Privacy Policy

Version: 1.0 (draft for approval)    Approved: [TO BE CONFIRMED: approval date]

Next review: [TO BE CONFIRMED: review date — normally 12 months after approval]

Owner: [TO BE CONFIRMED: role responsible, e.g. Secretary / Data Protection Lead]

## 1. Who we are

Kingston Muslim Association (“KMA”, “we”, “us”) runs Kingston Masjid and serves the Muslim community of Kingston upon Thames and the surrounding area. KMA is a registered charity in England and Wales (charity number [TO BE CONFIRMED: charity number]) with its principal address at [TO BE CONFIRMED: registered address].

KMA is the **data controller** for the personal information described in this policy. [TO BE CONFIRMED: ICO registration number, if registered]. Questions about this policy or our use of personal data should be sent to [TO BE CONFIRMED: data-protection contact email / postal address].

This policy explains how we collect, use, protect and share personal information in line with the **UK General Data Protection Regulation (UK GDPR)**, the **Data Protection Act 2018** and the **Privacy and Electronic Communications Regulations (PECR)**.

## 2. Who and what this policy covers

This policy applies to personal information about:

- **Members and membership applicants** — including their proposers and referees;
- **Donors** — including Gift Aid declarations;
- **Volunteers, employees, trustees and committee members;**
- **Visitors and worshippers** — including attendees of prayers, classes, events and services;
- **Children and young people** attending the madrasah, youth programmes or school visits;
- **Website, mobile app and online users** — including our content-management system (CMS), contact forms, newsletters and push notifications.

It covers information handled on paper and electronically, including our website, iOS and Android apps, digital screens, CMS, email, and third-party services acting on our instructions.

## 3. The information we collect and why

| Activity                             | Information collected                                                                        | Why we use it                                                                       |
|--------------------------------------|----------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------|
| Membership applications & membership | Name, date of birth, gender (optional), address, email, phone, username, proposers' details, | To assess applications, run the membership scheme, collect fees, hold AGM votes and |

|                                              |                                                                                                |                                                                                                 |
|----------------------------------------------|------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------|
| management                                   | application and payment history                                                                | communicate with members                                                                        |
| Donations & Gift Aid                         | Name, address, amount, date, Gift Aid declaration, bank reference                              | To process and record donations, claim Gift Aid from HMRC, and keep accurate charity accounts   |
| Contact forms & enquiries                    | Name, contact details, the content of your message                                             | To answer your enquiry                                                                          |
| Event & class registrations                  | Name, contact details, relevant needs (e.g. accessibility or dietary)                          | To organise and run the event or class safely                                                   |
| Newsletters, email, SMS & push notifications | Email address, phone number, device push token, communication preferences                      | To send the updates you have chosen to receive (see section 7)                                  |
| Religious & community services               | Details needed to provide prayer, nikah (marriage), funeral, education and welfare services    | To provide the service you have asked for and keep any records required                         |
| Volunteering & employment                    | Contact details, right-to-work and safeguarding checks where required, emergency contacts      | To manage volunteering and employment responsibly and lawfully                                  |
| Website & apps                               | Technical data (device type, pages visited), cookies and similar technologies (see section 10) | To keep our online services working, safe and improving                                         |
| Photography, video, CCTV & livestreaming     | Images and recordings in and around the mosque and at events                                   | Safety and security (CCTV), and community record/publicity (photos and streams — see section 8) |

## 4. Lawful bases for using personal information

We only use personal information when the law allows. Depending on the activity, we rely on:

- **Consent** — e.g. optional newsletters, marketing, some photography and children's activities. Consent can be withdrawn at any time;
- **Contract** — e.g. administering your membership once you apply;
- **Legal obligation** — e.g. Gift Aid and accounting records for HMRC, safeguarding duties, employment law;
- **Legitimate interests** — e.g. running the mosque, security, keeping proper records of our services, communicating essential (non-marketing) information — always balanced against your rights;
- **Substantial public interest / not-for-profit condition** (Article 9(2)(d) UK GDPR) — as a faith organisation we may process members' and regular contacts' religious-belief data in the course of our legitimate activities, with appropriate safeguards, and we do not disclose it outside KMA without consent.

## 5. Special-category and sensitive information

Because KMA is a faith organisation, the fact that someone is a member, worshipper or service user may itself indicate **religious belief**, which is special-category data. We may also hold health information you give us (e.g. accessibility needs) and safeguarding records. We handle all such information with extra care: access is limited to those who need it, it is never used for marketing, and it is only shared as described in this policy or with your consent.

## 6. Children and young people

We collect only the information needed to run madrasah classes, youth programmes and school visits safely — typically the child's name, age, parent/guardian contact details, and any health or welfare information the parent chooses to share. A parent or guardian must provide and consent to this information for children under 13. Photography of children requires explicit parental

consent. Safeguarding records are kept securely, access-restricted, and retained in line with statutory guidance **[TO BE CONFIRMED: safeguarding retention period per KMA's safeguarding policy]**.

## 7. Email, SMS, push notifications and marketing

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Under PECR we send electronic marketing (community news, events, fundraising) only to people who have **opted in** — for example ticking the news-and-updates box on the membership form, subscribing on our website, or enabling notifications in our apps. Every marketing email includes an unsubscribe link, app notifications can be turned off in your device settings, and you can change your preferences at any time by contacting us. Service messages that are not marketing — such as membership application updates, payment confirmations and renewal notices — are sent as part of running the membership scheme.

## 8. Photography, video, CCTV and livestreaming

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- **CCTV** operates in and around the mosque for the safety of worshippers and the security of the building. Signage is displayed; recordings are held securely and normally kept for **[TO BE CONFIRMED: CCTV retention period, e.g. 30 days]** before automatic deletion, unless needed for an incident;
- **Photography and filming** at events is signposted where practical. Tell the organisers if you do not wish to appear. We will not publish an identifiable photo of a child without parental consent;
- **Livestreaming** of prayers, khutbahs and events is framed to focus on the speaker and minimise congregation visibility wherever possible.

## 9. Prayer, funeral, marriage, education and community-service records

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We keep the records genuinely needed to provide these services — for example nikah records, funeral arrangements, madrasah enrolment and attendance, and welfare-support notes. Religious ceremony records may be kept permanently as part of the community's formal record **[TO BE CONFIRMED: confirm which registers KMA keeps permanently]**; other service records follow the retention periods in section 13.

## 10. Cookies, analytics and third-party services

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Our website and apps use only the cookies and similar technologies needed to work (for example keeping you signed in to the members' area). **[TO BE CONFIRMED: list any analytics used, e.g. none / privacy-friendly analytics, and update this section accordingly]**. We use carefully chosen service providers to run parts of our systems — for example website and database hosting, email delivery, and (for people who have opted in) the Mailchimp mailing-list service. These providers act on our instructions under contracts that protect your data.

## 11. Sharing and international transfers

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We do not sell personal information. We share it only:

- with service providers listed above, acting on our instructions;
- with HMRC (Gift Aid), the Charity Commission, or other authorities where the law requires;
- with professional advisers (e.g. our independent examiner or auditor) under confidentiality;
- in a safeguarding or medical emergency, where necessary to protect someone.

Some providers store data outside the UK. Where that happens we ensure an adequate level of protection — for example UK adequacy regulations or the UK International Data Transfer Agreement / Addendum.

## 12. How we keep information safe

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We protect personal information with technical and organisational measures, including: encrypted connections (HTTPS) to our website, apps and CMS; passwords stored using strong one-way hashing (staff can never see them); role-based access so volunteers and staff see only what their role requires; audit logging of changes in our CMS; locked storage for paper records; and prompt removal of access when roles end.

### 13. How long we keep information

| Records                                   | Retention period                                                        |
|-------------------------------------------|-------------------------------------------------------------------------|
| Membership records                        | Duration of membership + [TO BE CONFIRMED: e.g. 2 years] after it ends  |
| Unsuccessful membership applications      | [TO BE CONFIRMED: e.g. 12 months] after the decision                    |
| Donations, Gift Aid and financial records | At least 6 years after the end of the financial year (HMRC/charity law) |
| Contact-form enquiries                    | [TO BE CONFIRMED: e.g. 12 months] after resolution                      |
| CCTV                                      | [TO BE CONFIRMED: e.g. 30 days], unless required for an incident        |
| Safeguarding records                      | In line with statutory guidance and KMA's safeguarding policy           |
| Employment and volunteer records          | [TO BE CONFIRMED: e.g. 6 years] after the role ends                     |

When information is no longer needed it is securely deleted or destroyed, or fully anonymised.

### 14. Your rights

You have the right to: **be informed** about how your data is used; **access** a copy of your data (a Subject Access Request); **rectify** inaccurate data; **erasure** in certain circumstances; **restrict** or **object** to certain processing; **data portability** for data you provided under consent or contract; and to **withdraw consent** at any time where consent is the basis. We will respond to rights requests within one calendar month.

### 15. Subject Access Requests and complaints

To request your data, use the **Right of Access Request Form** available under Resources on our website, or write to [TO BE CONFIRMED: data-protection contact email / postal address]. We may need to verify your identity before responding. If you are unhappy with how we handle your data or your request, please contact us first so we can put it right. You also have the right to complain to the Information Commissioner's Office (ICO): ico.org.uk · 0303 123 1113.

### 16. Data breaches

We keep a register of personal-data incidents. Where a breach is likely to result in a risk to people's rights and freedoms, we will report it to the ICO within 72 hours of becoming aware, and where the risk is high we will also inform the people affected without undue delay.

### 17. Responsibilities and review

The trustees of KMA are responsible for this policy. Day-to-day data-protection matters are handled by [TO BE CONFIRMED: named role, e.g. the Secretary or Data Protection Lead]. All volunteers and staff who handle personal data must follow this policy. It is reviewed at least annually, and after any significant change to our activities or the law.

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Approved by (name & role)

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Signature

\_\_\_\_\_  
Date